MERGER AGREEMENT 2 mfr

Dated: March 15, 2026

BETWEEN:
TechBuyer Inc. ("Purchaser")
and
SoftTarget Corp. ("Target")

ARTICLE 1: DEFINITIONS

"Closing Date" means the date specified in the closing certificate.
"Material Adverse Effect" means any change that results in a reduction of 20% or more in consolidated revenue.
"Knowledge" means actual knowledge of the CEO and CFO.

ARTICLE 2: PURCHASE PRICE

The aggregate purchase price shall be $75,000,000, payable as:
- $55,000,000 cash at Closing
- $10,000,000 Purchaser common stock (6-month lock-up)
- $10,000,000 earnout payable if Target achieves specified revenue targets (see Schedule A)

ARTICLE 3: REPRESENTATIONS AND WARRANTIES

3.1 Target Representations:
(a) Target is duly organized and validly existing.
(b) Target has no material undisclosed liabilities except as set forth in Schedule 3.1(b).
(c) Financial statements for fiscal years 2023-2025 are accurate in all material respects.
(d) Target is in compliance with all applicable laws except where non-compliance would not reasonably be expected to result in $500,000 or more in liability.

3.2 Purchaser Representations:
(a) Purchaser has full authority to enter this Agreement.
(b) Purchaser has sufficient funds to close.

ARTICLE 4: COVENANTS

Target shall operate in the ordinary course of business pending Closing. Any material action requires Purchaser's consent.

ARTICLE 5: CLOSING CONDITIONS

5.1 Conditions to Purchaser's Obligations:
(a) Representations true and correct as of Closing
(b) No Material Adverse Effect has occurred
(c) Regulatory approvals obtained
(d) Outside Closing Date: September 30, 2026

5.2 Conditions to Target's Obligations:
(a) Purchase Price paid as agreed

ARTICLE 6: INDEMNIFICATION

6.1 Survival: Representations survive for 12 months post-Closing (24 months for fundamental reps).

6.2 Indemnification Cap: $15,000,000.

6.3 Basket: $500,000 (claims only payable once aggregate exceeds basket).

6.4 Fraud Carve-Out: No cap for fraudulent misrepresentation.

ARTICLE 7: TERMINATION

Either party may terminate if:
(a) Closing not occurred by Outside Date
(b) Material breach not cured within 30 days
(c) Mutual written consent

ARTICLE 8: TAX MATTERS

Target represents that no tax audits are pending. All tax returns are accurate.

ARTICLE 9: EMPLOYEES AND BENEFITS

Target employees shall receive offers of employment post-Closing. Key executives have 12-month retention agreements.

ARTICLE 10: INTELLECTUAL PROPERTY

Target owns or validly licenses all IP used in its business. All registered IP is listed on Schedule 10.

ARTICLE 11: GENERAL PROVISIONS

11.1 Entire Agreement: This Agreement constitutes the entire understanding.

11.2 Governing Law: Delaware.

11.3 Dispute Resolution: Binding arbitration in Wilmington, Delaware under AAA rules.

11.4 Amendments: In writing signed by both parties.

11.5 Counterparts: Electronic signatures permitted.

SCHEDULES:
Schedule A - Earnout Metrics (attached, but metrics are vaguely defined as "agreed post-closing")
Schedule 3.1(b) - Liabilities (attached and complete)
Schedule 10 - IP Registrations (attached and complete)

SIGNATURES:

For Purchaser: _____ Date: _____
Name: Sarah Chen, CEO

For Target: _____ Date: _____
Name: Marcus Webb, President